IN THE HIGH COURT FOR THE STATE OF TELANGANA AT HYDERABAD

WEDNESDAY, THE EIGHTH DAY OF APRIL
TWO THOUSAND AND TWENTY SIX

PRESENT

THE HONOURABLE SRI JUSTICE J SREENIVAS RAO

I.A.Nos.2 and 3 of 2026
In/and

CRIMINAL PETITION NO: 4749 OF 2026

CRIMINAL PETITION NO: 4749 OF 2026

Between:

Shaik Wajeed, S/o. Abdul Rashid, Aged about 33 Years, Occ Gulf Employee, Presently H.No.4-16, Maskapur Village, Khanapur Mandal, Nirmal Dist, Telangana.

...Petitioner/Accused No.1

AND

1. The State of Telangana,, Rep. by the Public Prosecutor, High Court at Hyderabad for the State of Telangana.
2. Shaik Tahseen,, W/o Shaik Wajeed, aged about 27 years, Occ. Labour, R/o. H.No.4-16, Maskapur Village, Khanapur Mandal, Nirmal Dist, Presently at Gajulapet Nirmal Town, Telangana.

...Respondents

Petition under Section 528 of BNSS praying that in the circumstances stated in the Memorandum of Grounds of Criminal Petition, the High Court may be pleased to quash the proceedings in CC. No.118 of 2025 on the file of the Court of Judicial First Class Magistrate at Khanapur in relation to FIR No 28 of 2025 at SHO Khanapur Police Station Nirmal in so far as Petitioner/Accused No 1.

.A.Nos.2 and 3 of 2026

I.A. NO: 2 OF 2026

BETWEEN:

1. Shaik Tahseen,, W/o Shaik Wajeed, aged about 27 years, Occ. Labour, R/o. H.No.4-16, Maskapur Village, Khanapur Mandal, Nirmal Dist, Presently at Gajulapet Nirmal Town, Telangana

...Petitioner/De-facto Complainant in I.A.Nos.2 & 3 of 2026

AND

1. Shaik Wajeed, S/o. Abdul Rashid, Aged about 33 Years, Occ Gulf Employee, Presently H.No.4-16, Maskapur Village, Khanapur Mandal, Nirmal Dist, Telangana

...Respondent/Accused No.1 in I.A.Nos.2 & 3 of 2026

2. The State of Telangana,, Rep. by the Public Prosecutor, High Court at Hyderabad for the State of Telangana.

...Respondent/Complainant in I.A.Nos.2 & 3 of 2026

Petition under Section 359(6) of BNSS praying that in the circumstances stated in the Memorandum of Grounds of Criminal Petition, the High Court may be pleased to permit the petitioner to compromise the in relation to CC. No.118 of 2025 on the file of the Court of Judicial First Class Magistrate at Khanapur, in relation to FIR. No. 28 of 2025 at SHO, Khanapur Police Station, Nirmal in so far as respondent/Accused No. 1 concerned.

I.A. NO: 3 OF 2026

Petition under Section 359(2) of BNSS praying that in the circumstances stated in the Memorandum of Grounds of Criminal Petition, the High Court may be pleased to record the compromise and quash the proceedings against the respondent/Accused No. 1 in relation to CC No. 118 of 2025 on the file of the Court of Judicial First Class Magistrate at Khanapur in relation to FIR.No.28 of 2025 at SHO, Khanapur Police Station, Nirmal.

This Petition coming on for hearing, upon perusing the Memorandum of Grounds of Criminal Petition and upon hearing the arguments of Sri Alluri Divakar Reddy , Advocate for the Petitioner and Sri Jithender Rao Veeramalla, Additional Public Prosecutor on behalf of Respondent No.1 and of Sri Tharun Kumar Puram, Advocate for the Respondent No.2.

The Court made the following: COMMON ORDER

IN THE HIGH COURT FOR THE STATE OF TELANGANA AT HYDERABAD

THE HONOURABLE SRI JUSTICE J. SREENIVAS RAO

I.A.Nos.2 and 3 of 2026
IN/AND
CRIMINAL PETITION No.4749 of 2026

Date: 08.04.2026

Between :

Shaik Wajeed

....Petitioner/Accused No.1

AND

The State of Telangana and another

....Respondents

COMMON ORDER:

This Criminal Petition has been filed by the petitioner/accused No.1 seeking to quash the proceedings in C.C. No.118 of 2025 on the file of the Judicial First Class Magistrate at Khanapur, for the offences punishable under Section 85 of the Bharatiya Nyaya Sanhita, 2023 and Sections 3 and 4 of the Dowry Prohibition Act, 1961.

2. Heard Mr. Alluri Divakar Reddy, learned counsel for the petitioner, Mr. Tharun Kumar Puram, learned counsel for respondent No.2, and Mr.Jithender Rao Veeramalla, learned Additional Public Prosecutor, appearing on behalf of respondent No.1-State.

3. ~~learn~~ned counsel for both parties submitted that during the pendency of the present Criminal Petition, at the instance of the well

wishers, relatives and elders, the parties have settled the disputes pending between them and entered into compromise and filed Joint Memo. Accordingly, the parties have filed I.A.Nos.2 and 3 of 2026 seeking permission to compromise the matter and to record the compromise entered between them by compounding the offences.

4. This Court *vide* order, dated 01.04.2026, directed the parties i.e., the petitioner and respondent No.2, to appear before the High Court Legal Services Committee, Hyderabad, on or before 10.04.2026 for their identification. In compliance of the said order, the Secretary, High Court Legal Services Committee, has submitted report, dated 06.04.2026, stating that all the parties were duly identified with the copies of their Aadhar Cards. It is further stated that all the parties have willfully and without any coercion entered into compromise.

5. Learned Additional Public Prosecutor has not opposed the same.

6. In view of the said report and also in view of the compromise entered between the petitioner and respondent No.2 as well as the submissions made by the respective parties, I.A.Nos.2 and 3 of 2026 are allowed. Consequently, the proceedings in C.C. No.118 of 2025 on the file of the Judicial First Class Magistrate at Khanapur are hereby quashed against the petitioner/accused No.1.

7. Accordingly, the Criminal Petition is allowed, subject to payment of Rs.10,000/- (Rupees ten thousand only) to the High Court Legal Services Committee, Hyderabad and Rs.5,000/- (Rupees five thousand only) to the Telangana High Court Advocates Association, Hyderabad, by the petitioner, on or before 30.04.2026.

Miscellaneous applications, pending if any, shall stand closed.

SD/- M. NAGAMANI
ASSISTANT REGISTRAR

//TRUE COPY//

SECTION OFFICER

To,

1. The Judicial First Class Magistrate at Khanapur
2. The Station House Officer, Khanapur Police Station, Nirmal
3. One CC to Sri Alluri Divakar Reddy, Advocate [OPUC]
4. One CC to Sri Tharun Kumar Puram, Advocate [OPUC]
5. Two CCs to PUBLIC PROSECUTOR High Court for the State of Telangana, at Hyderabad [OUT]
6. Two CD Copies

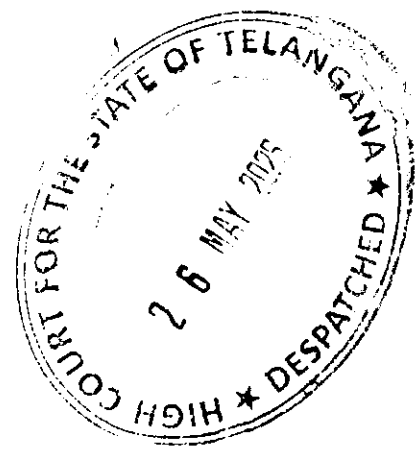
ADK/BA

Along with a copy of Joint Memo of compromise.

Note: Total Amount of Rs. 15,000/- (Rupees Fifteen thousand only) has been paid by Sri Alluri Divakar Reddy Counsel for the Petitioner as directed by the Hon'ble Court vide order dated 08.04.2026 as Rs. 10,000/- (Rupees Ten thousand only) to the "High Court Legal Services Committee, Hyderabad" and Rs. 5,000/- (Rupees Five thousand only) to the "Telangana High Court Advocates Association, Hyderabad" and filed Memo as proof of compliance vide USR No.45584 of 2026 dated 09.04.2026.

HIGH COURT

DATED: 08/04/2026



COMMON ORDER

I.A.Nos.2 and 3 of 2026
In/and

CRLP.No.4749 of 2026

ALLOWING THE CRLP AND IA.NOs.2 & 3 OF 2026

(9)
MBL
18/5

IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD

CRLP. No. 4749 of 2026

BETWEEN:

Shaik Wajeed S/o. Abdul Rashid,
Aged about 33 Years, Occ: Gulf Employee,
Presently R/o. H.No.4-16, Maskapur Village,
Khanapur Mandal, Nirmal Dist, Telangana.

...Petitioner/Accused No.1

And

1. The State of Telangana,
Rep. by the Public Prosecutor, High Court
at Hyderabad for the State of Telangana

2. Shaik Tahseen, W/o Shaik Wajeed,
aged about 27 years, Occ: Labour,
R/o. H.No.4-16, Maskapur Village,
Khanapur Mandal, Nirmal Dist,
Presently at Gajulapet Nirmal Town, Telangana.

...Respondents

JOINT MEMO

1. It is submitted that, the 2nd respondent has lodged a complaint before the 1st respondent police on 25.01.2025 hours stating that the 2nd Respondent was married to Accused No. 1 approximately 10 years ago. Accused No. 1 is currently employed in Doha, Qatar, and returns home once every two years. The couple has three daughters, aged 9, 7, and 5 years. The 2nd Respondent alleges

Advocate Hyderabad

that Accused No. 1 married her under pressure from his parents. Consequently, he has consistently subjected her to mental and physical cruelty. Since relocating for work, he has neglected his financial and emotional responsibilities toward his wife and children. It is further alleged that Accused No. 1 expressed resentment over the birth of their three daughters. He has purportedly threatened the 2nd Respondent's life, stating he would kill her to marry someone else and accusing her of occupying his house against his will. Despite multiple interventions and meetings held by village elders, the behavior of Accused No. 1 remained unchanged. On 23.01.2025 this date, the Accused allegedly assaulted the 2nd Respondent and forcibly evicted her from the matrimonial home, instructing her to return to her parents. On 25.01.2025 At approximately 16:40 hours, the 2nd Respondent returned to the home accompanied by her mother, Shameem Begum, in an attempt to reconcile. Upon arrival, Accused No. 1 allegedly verbally abused them, physically assaulted the 2nd Respondent, and demanded an additional dowry of ₹3,00,000 as a condition for her return. Therefore, the complainant has requested the police to take action as per Law. The respondent Police has registered the FIR vide Cr. No. 29 of 2026 on the file of the SHO,

Khanapur Police Station, Nirmal for offences under Sections 85 BNS and 3 & 4 of DP Act, in relation to FIR No. 28 of 2025 at, Khanapur Police Station, Nirmal.

2. I have approached my husband and on mutual discussion, we have decided to live together and continue our matrimonial relationship happily without any quarrels in the presence of elders. I further submit that we have entered into memorandum of understanding dated 08.03.2026 in the presence of elders and decided to withdraw cases filed against my husband.

3. The complainant has further acknowledge the fact that the complaint lodged against the petitioner/Accused No. 1 was based on a misunderstanding and in misrepresentation.

4. It is submitted that the complainant has expressed that he has no intention or desire to pursue the case against the petitioner and has come to a mutual understanding to withdraw the case against the petitioner as per the procedure of law.

5. It is humbly submitted that the petitioner and the 2nd respondent have voluntarily come to a conclusion and decided to withdraw the

complaint filed against petitioner since he is being falsely implicated in the crime as Accused No. 1 in the crime.

6. It is humbly submitted that by virtue of said compromise, no useful purpose is likely to be served by allowing a criminal prosecution to continue and therefore filing this petition to quash the aforesaid proceedings thereby to prevent abuse of the process of court and to secure ends of justice by exercising the power of this Hon'ble Court to quash the proceedings under Sec.528 of BNSS as Section 359 of BNSS would not be bar in view of the judgments of the Hon'ble Apex Court.

Petitioner/Accused No.1

2nd Respondent/defacto-Complainant

Counsel for the Petitioner

Counsel for the 2nd respondent.